

2:00 PM

LINE 2

23-CIV-00420 JESSICA GONZALEZ VS TABITHA DATTE

JESSICA GONZALEZ
TABITHA DATTE

DAVID BIBIYAN

COMPLIANCE HEARING

TENTATIVE RULING:

On November 4, 2026 with written order filed November 24, 2025, this court provided approval of the settlement in this Private Attorney's General Act (PAGA) case and the court set a compliance hearing for July 21, 2026.

On July 14, 2026, Yesenia Henriquez of Phoenix Settlement Administrators (Phoenix), the settlement administrator, filed a declaration setting forth the work that Phoenix performed to disburse the settlement funds, and to comply with its obligations under the settlement agreement and this court's order.

According to Henriquez's declaration, all disbursements have been made and the time for cashing the checks has passed (the deadline was July 2, 2026). Phoenix updated settlement members' addresses. The declaration states that there are 115 checks, totaling \$7,575.99 that remain uncashed. As previously ordered, the court orders Phoenix to remit the uncashed funds to the Legal Aid at Work. Phoenix is ordered to file in this court a declaration within seven days of notice of entry of order confirming that the funds have been remitted to Legal Aid at Work with instructions that the funds are for use in San Mateo County. The declaration shall be filed, served, and emailed to Department 4. Once this declaration is filed, the case will be fully resolved and shall be closed upon the filing of Phoenix's declaration confirming the remitting of the funds.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for plaintiff shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM

LINE 3

24-CIV-07699

NINA BOGDANOFF, ON BEHALF OF HERSELF AND ALL OTHERS SIMILARLY SITUATED VS
LIFT ENRICHMENT, INC.

NINA BOGDANOFF, ON BEHALF OF HERSELF AND ALL OTHERS SIMILARLY SITUATED
LIFT ENRICHMENT, INC.

LEONARD EMMA

MARYAM MALEKI

PLAINTIFF'S MOTION FOR LEAVE TO FILE SECOND AMENDED COMPLAINT

CONTINUED FROM 6/9/2026, 6/16/2026, AND 7/7/2026 AT DEFENDANT'S REQUEST

TENTATIVE RULING:

The court repeats the tentative ruling posted for the June 9, 2026 hearing. Defendant contests the tentative ruling.

Plaintiff Nina Bogdanoff's Motion for Leave to File a Second Amended Complaint is GRANTED.

In this case, on December 6, 2024, plaintiff Bogdanoff filed a wage and hour class action complaint against defendant Lift Enrichment, Inc., which included an overtime claim. On February 10, 2025, plaintiff filed a first amended complaint, which added a Private Attorney General Act (PAGA) claim and deleted the overtime claim because she did not have standing to assert it. On March 20, 2025, defendant answered the first amended complaint. Now, plaintiff seeks to file a second amended complaint to add two individuals, Tyler Fleeman and Nicky Grier-Fairley, as class and PAGA representatives and to add a cause of action for failure to pay overtime. Defendant opposes arguing that the proposed new plaintiffs did not submit their PAGA notices until after the filing of the complaint and thus they cannot claim the benefit of the December 6, 2024 filing date.

The motion was originally scheduled to be heard on May 6, 2026, but the court had question on whether the two new proposed plaintiff could revive a claim that was originally pled in the original complaint but then omitted from the operative pleading. The parties submitted supplemental briefing.

Public policy considerations favor the use of the court's discretion to grant a party's request for leave to amend a pleading, as reflected in California case law. For example, our Supreme Court has stated that "In the matter of amending pleadings, this court has always counseled and sanctioned great liberality. No discussion upon so plain a proposition is necessary." (*Norton v. Bassett* (1910) 158 Cal. 425, 426–27.)

Accordingly, in deciding that the court below had abused its discretion in denying such a request, the Court of Appeal later explained that:
